HIS Excellency the President, in terms of section 2 of the Presidential Powers (Temporary Measures) Act [*Chapter 10:20*], hereby makes the following regulations:—

PART I

PRELIMINARY

Title

1. These regulations may be cited as the Presidential Powers (Temporary Measures) (General Laws Amendment) Regulations, 2024.

2. These regulations shall come into effect on the 1st January, 2025.

PART II

POLICE ACT [*CHAPTER 11:10*]

Amendment of section 22 of Cap. 11:10

3. Section 22 ("Retirement") of the Police Act [*Chapter 11:10*] is amended—

(a) in subsection (1)(b) by the deletion of "twenty" and the substitution of "thirty";

(b) by the repeal of subsections (2), (3) and (4), and the substitution of—

"(2) The Commissioner may, on notice of twelve months, in writing, require a Regular Force member whose pensionable service at the end of such notice will amount to thirty years or more, to retire from the Regular Force:

Provided that a Regular Force member who has been given notice in terms of this subsection may retire at any time before the expiration of that notice on giving to the Commissioner, in writing,

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three months' notice of his or her intention to do so or such lesser period of notice as the Commissioner may in his or her case permit.

(3) A Regular Force member shall, whatever the length of his or her pensionable service, retire from the service at midnight on the sixtieth anniversary of his or her birthday:

Provided that, if the Commissioner considers that it is desirable in the public interest and that the Regular Force member is medically fit to be retained in the service, he or she may direct that such Regular Force member be permitted to continue to serve in the service for a further period of five years until midnight of the sixty-fifth anniversary of his or her birthday, notwithstanding that the Commissioner may, on giving twelve months written notice to the Regular Force member of his or her intention to do so, require him or her to retire before he or she has served that period.

(3a) A Regular Force member who has continued to serve in the service in terms of the proviso to subsection (3) shall retire from his or her employment in the service at midnight on the sixty-fifth anniversary of his or her birthday:

Provided that, if the Minister considers that it is desirable in the public interest and that the Regular Force member is medically fit to be retained in the service, he or she may direct that such Regular Force member be permitted to continue to serve in the service for a further period of five years until midnight of the seventieth anniversary of his or her birthday, notwithstanding that the Minister may, on giving twelve months written notice to the Regular Force member of his or her intention to do so, require him or her to retire before he or she has served that period.

(3b) A Regular Force member who has continued to serve in the service in terms of the

proviso to subsection (3a) shall retire from his or her employment in the service on attaining the age of seventy years.

(4) A Regular Force member appointed before the effective date on pensionable terms of service shall have a pensionable age of fifty years unless the member elects to retire at sixty years of age and after such election, any retirement before the elected pensionable age of sixty shall be deemed to be retirement in terms of subsection (2).";

(c) by the insertion of a new subsection after subsection (6)—

"(7) This section shall not be construed as precluding the Commissioner from terminating the employment of any Regular Force member who has failed to perform in his or her duties or is no longer suitable to be in the employ of the Force.".

PART III

Prisons and Correctional Service Act [*Chapter 7:21*]

Amendment of section 11 of Cap. 7:21

4. Section 11 ("Retirement of correctional officers") of the Prisons and Correctional Service Act [*Chapter 7:21*] is repealed and the substitution of—

"(1) Subject to section 10, on giving to the Commissioner-General in writing, at least three months notice of his or her intention to do so or such lesser period of notice as the Commissioner-General may in his or her case permit, a correctional officer may retire from service—

(a) on gratuity when his or her pensionable service amounts to ten years or more; or

(b) if he or she does not exercise his or her right to retire in terms of paragraph (a), on pension, when his or her pensionable service amouths to thirty years or more.

(2) The Commissioner-General may, on notice of twelve months, in writing, require a correctional officer whose pensionable

service at the end of such notice will amount to thirty years or more, to retire from service:

Provided that a correctional officer who has been given notice in terms of this subsection may retire at any time before the expiration of that notice on giving to the Commissioner-General, in writing, three months' notice of his or her intention to do so or such lesser period of notice as the Commissioner-General may in his or her case permit.

(3) A correctional officer shall, whatever the length of his or her pensionable service, retire from the service at midnight on the sixtieth anniversary of his or her birthday:

Provided that, if the Commissioner-General considers that it is desirable in the public interest and that the correctional officer is medically fit to be retained in the service, he or she may direct that such correctional officer be permitted to continue to serve in the service for a further period of five year until midnight of the sixty-fifth anniversary of his or her birthday, notwithstanding that the Commissioner-General may, on giving twelve months written notice to the officer of his or her intention to do so, require him or her to retire before he or she has served that period.

(4) A correctional officer who has continued to serve in the service in terms of the proviso to subsection (2) shall retire from his or her employment in the service at midnight on the sixty-fifth anniversary of his or her birthday:

Provided that, if the Minister considers that it is desirable in the public interest and that the correctional officer is medically fit to be retained in the service, he or she may direct that such correctional officer be permitted to continue to serve in the service for a further periods of five years until midnight of the seventieth anniversary of his or her birthday, notwithstanding that the Minister may, on giving twelve months written notice to the officer of his or her intention to do so, require him or her to retire before he or she has served that period.

(5) A correctional officer who has continued to serve in the service in terms of the proviso to subsection (4) shall retire from his or her employment in the service on attaining the age of seventy years.

(6) A correctional officer appointed before the effective date on pensionable terms of service shall have a pensionable age of fifty years unless the member elects to retire at sixty years of age and any retirement before the elected pensionable age of sixty shall be deemed to be retirement in terms of subsection (1).

(7) This section shall not be construed as precluding a correctional officer from resigning from the service in terms of any regulations made in terms of this Act.

(8) This section shall not be construed as precluding the Commissioner-General from terminating the employment of any correctional officer who has failed to perform in his or her duties or is no longer suitable to be in the employ of the service.".